

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jessica Peña	Team: Team # 1	CCRB Case #: 200510814	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 07/01/2005 2:44 PM	Location of Incident: Miller and Belmont Avenues	18 Mo. SOL 1/1/2007	Precinct: 75		
Date/Time CV Reported Tue, 09/13/2005 4:23 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 09/13/2005 4:23 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Vincent Fontana	15144	931673	075 PCT
2. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Albert Marvelli	13476	927148	075 PCT
2. POM Michael Langlois	26882	930529	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Discourtesy: An officer acted rudely toward § 87(2)(b)	A . Unfounded
B . An officer	Discourtesy: An officer spoke obscenely and/or rudely to § 87(2)(b)	B . Unfounded
C . POM Vincent Fontana	Force: PO Vincent Fontana used physical force against § 87(2)(b)	C . Unfounded
D . An officer	Discourtesy: An officer spoke obscenely and/or rudely to individuals.	D . Unfounded
E . An officer	Abuse: An officer threatened to arrest individuals.	E . Unfounded

Synopsis

On July 1, 2005, at approximately 2:40pm, § 87(2)(b) was riding his bicycle on Miller Avenue in Brooklyn when officers Vincent Fontana, Albert Marvelli and Michael Langlois from the 75th Precinct stopped him for riding on the sidewalk. The officers placed § 87(2)(b) against a fence and an officer removed his wallet from his back pocket and threw it on the ground [Allegation A]. § 87(2)(b) warned the officers not to plant contraband on him and an officer responded, "Shut the fuck up" [Allegation B]. PO Fontana then kned § 87(2)(b) on his back and side [Allegation C]. A civilian across the street began to curse at the officers and was allegedly told to "Shut the fuck up" and threatened with arrest [Allegations D and E]. A summons was issued to § 87(2)(b) for § 87(2)(b). Later that date, § 87(2)(b) saw the officers and informed them that he lost his summons. An officer allegedly responded, "Shut the fuck up" [Allegation B].

§ 87(2)(g) . It is therefore recommended that allegations (A) through (E) § 87(2)(g) be closed as *unfounded*.

Summary of Complaint

§ 87(2)(b) contacted the CCRB on September 13, 2005 to file a complaint against three officers regarding an incident that occurred on July 1, 2005. § 87(2)(b) is a § 87(2)(b) Hispanic male and resides at § 87(2)(b) in Brooklyn. § 87(2)(b)

Initial Statement

On September 28, 2005, the undersigned contacted § 87(2)(b) during which time he provided the following telephone statement (encl. 4). § 87(2)(b) stated that on July 1, 2005, he was riding his bike on Miller Avenue between Pitkin Avenue and Vermont Street. He entered a corner store, leaving his bike outside on the sidewalk. When § 87(2)(b) exited the store, he saw three white male officers in a marked patrol van, identified by the investigation as PO Vincent Fontana, PO Albert Marvelli and PO Michael Langlois from the 75th Precinct. § 87(2)(b) got on his bike and rode onto the street. He heard the operator, identified by the investigation as PO Fontana, say, "What's up man?" § 87(2)(b) did not respond and the officers pulled up next to him, almost striking his bike. § 87(2)(b) got off his bike and the three officers exited the van and threw him against a nearby wall. PO Fontana removed § 87(2)(b)'s wallet and prayer book from his back pocket. The passenger, identified by the investigation as PO Marvelli, then maneuvered § 87(2)(b)'s arms behind his back and kned him in the back. PO Fontana told § 87(2)(b) "Shut your mouth or you will be arrested." PO Marvelli then issued § 87(2)(b) a summons for § 87(2)(b). The stop lasted approximately thirty minutes. During the stop there were at least ten people nearby yelling at the officers that they were harassing § 87(2)(b).

CCRB Sworn Statement

§ 87(2)(b) appeared at the CCRB on October 5, 2005, during which time he provided the following statement (encl. 5a-e).

On July 1, 2005, at approximately 11:00am, § 87(2)(b) drove his gray mountain bike to a corner store located on Miller Avenue between Pitkin Avenue and Vermont Street. § 87(2)(b) saw three uniformed officers in a marked patrol van waiting for the light on Miller Avenue. The driver was later identified as PO Vincent Fontana, of the 75th Precinct. The passenger was later identified during the investigation as PO Albert Marvelli. The officer in the backseat was later identified during the investigation as PO Michael Langlois. § 87(2)(b) entered the corner grocery store for approximately one minute and bought a soda, leaving his bicycle outside. When he exited the store PO Fontana called for § 87(2)(b)'s attention. § 87(2)(b) ignored the officer and rode his bike on the street to the corner of Miller and

Vermont Avenue. PO Fontana then cut off § 87(2)(b) stopping approximately one foot away from § 87(2)(b). All three officers exited their vehicle and approached § 87(2)(b). PO Langlois grabbed § 87(2)(b)'s belt as PO Fontana and PO Marvelli grabbed him by the right wrist. PO Marvelli entered his rear pocket and removed his wallet and an orange prayer book. § 87(2)(b) questioned why his identification was necessary and an officer responded that he was in a drug prone location and did not have the right to speak. PO Marvelli threw the items on the ground. § 87(2)(b) requested PO Marvelli to pick them up and warned the officers not to "put any contraband in [his] pockets because officers are known to do that so they can arrest civilians." An officer replied, "Shut the fuck up. No one wants to do that." § 87(2)(b) could not identify this officer.

The officers then pushed § 87(2)(b) against a nearby fence. PO Marvelli kned § 87(2)(b) on his side as PO Fontana kned him on the leg. There were four onlookers across the street who were calling the officers "abusers" and "dicks" and yelling for them to stop harassing § 87(2)(b). An officer told them, "Shut the fuck up," and threatened to arrest them. Initially § 87(2)(b) believed that PO Fontana wrote the summons but later revised his testimony and said that PO Marvelli issued the summons. PO Marvelli then gave § 87(2)(b) the summons along with his identification. § 87(2)(b) initially told the officers that he did not want to take it but eventually took it. § 87(2)(b) did admit that he yelled to the officers but denied using profanity. He did tell the officers that he felt he was being "abused" and an officer responded, "Shut the fuck up," and questioned why § 87(2)(b) was screaming. The officers then reentered their vehicle and drove away. § 87(2)(b) did not sustain any injuries.

Later on that day, § 87(2)(b) saw the same officers in the neighborhood. He asked the officers to issue him a second summons since he lost the first one. When the undersigned questioned how he lost the summons, § 87(2)(b) said that he did not lose it but just told the officers that he had. He later revised his testimony and said that he did lose the summons at a supermarket. § 87(2)(b) believed that what occurred was racially motivated.

Photo Identification

A photo array was conducted with § 87(2)(b) on December 12, 2005(encl. 6a-d). He identified PO Marvelli in photo array #1 as the officer who reached into his pocket and retrieved his identification. § 87(2)(b) then identified PO Fontana as the officer who put his gloves on, pushed him against the fence and kned him on the side and stomach.

Results of Investigation

Attempts to Locate Additional Witnesses

On December 15, 2005, the undersigned conducted a field trip in the vicinity of Belmont and Miller Avenues. § 87(2)(g) On December 23, 2005, § 87(2)(b) contacted the undersigned and provided an address for a potential witness, however no name was provided. A letter was sent to the residence (encl. 13c). To date, no response has been received.

Officer Interviews

PO Michael Langlois

PO Langlois was interviewed by the CCRB on November 29, 2005 (encl. 9a-b). On July 1, 2005, PO Langlois worked a tour of 10:00am to 6:00pm and was assigned to work with PO Fontana and PO Marvelli as part of the 75th Precinct Street Narcotics Enforcement Unit (SNEU). PO Langlois was seated in the passenger seat. PO Langlois is a white male, § 87(2)(b). He has brown hair and brown eyes.

On July 1, 2005 at approximately 2:44pm, the SNEU team was driving down Miller Avenue when they observed § 87(2)(b) riding his bicycle on the sidewalk. PO Langlois did not see § 87(2)(b) enter a store prior to being stopped, though he did confirm that there is a grocery store located on the corner. PO Fontana, who was the operator of the van, pulled over on the corner and ordered § 87(2)(b) to stop. All three officers exited the vehicle and approached § 87(2)(b). § 87(2)(b) appeared upset and yelled, "This is

fucking bullshit. I did nothing wrong [sic]. You guys have nothing better to fucking do?" The officers explained that he was stopped for riding on the sidewalk, but § 87(2)(b) continued to curse. An onlooker on the porch across the street began yelling that the officers could not stop § 87(2)(b). PO Langlois described this male as Hispanic and heavy set, who is always on his porch screaming. At no point did the officers threaten to arrest him.

PO Langlois never had any physical contact with § 87(2)(b). He did believe that PO Fontana patted § 87(2)(b) down for weapons, but never saw him being pushed against a fence. He also did not see § 87(2)(b) kneed on the side, or searched for identification. PO Marvelli did issue him a summons for disorderly conduct. He retrieved § 87(2)(b)'s information from a benefit card that § 87(2)(b) provided. PO Marvelli explained to § 87(2)(b) that the summons was issued in lieu of arrest and he could have been arrested. As the officers were driving off, § 87(2)(b) crumpled the summons and threw it towards the patrol van. Later on that day, on Bradford and Miller Avenues, § 87(2)(b) saw the officers and questioned how he could get a copy of the summons. PO Langlois told § 87(2)(b) the date and time he had to appear in court. None of the officers used profanity throughout the incident.

PO Vincent Fontana

PO Fontana was interviewed by the CCRB on November 25, 2005 (encl. 8a-d). On July 1, 2005 he worked from 12:00pm to 8:35pm for the 75th Precinct SNEU team. PO Fontana is a white male, § 87(2)(b). He has brown hair and blue eyes. PO Fontana was the operator of the patrol van. PO Fontana did not have any memo book entries regarding the incident. § 87(2)(g)

After observing § 87(2)(b) riding his bicycle on the sidewalk, PO Fontana pulled over the patrol van. The three officers approached § 87(2)(b) and he argued about why he was stopped. At no point was § 87(2)(b) put against a wall or fenced area. PO Fontana added that there are no grocery stores or fences that he would have been placed against. PO Fontana did not know if § 87(2)(b) provided identification and did not see any officers search him. After PO Marvelli issued a summons to § 87(2)(b) the officers left the scene. There were onlookers protesting from across the street. However, at no point did any officers threaten to arrest them.

PO Albert Marvelli

PO Albert Marvelli was interviewed by the CCRB on November 16, 2005 (encl. 7a-d). On July 1, 2005, he worked a tour of 12:00pm to 8:35pm. PO Marvelli was assigned to SNEU and was in the prisoner van. PO Marvelli worked with PO Michael Langlois and PO Vincent Fontana. At the time of incident, PO Marvelli was not licensed to operate a department van. He could not recall whether he was seated in the passenger seat or in the backseat of the vehicle. PO Marvelli is a white male, § 87(2)(b). He has graying hair and brown eyes. PO Marvelli had no independent recollection of this incident and did not have any memo book entries.

The undersigned provided PO Marvelli with a synopsis of the incident along with a copy of the summons issued to § 87(2)(b). PO Marvelli confirmed that he wrote the summons but still could not recall the incident. The undersigned also presented a photo of § 87(2)(b) which also did not assist in his recollection. PO Marvelli stated that he did remember being in the area and stopping a male on a bicycle who was screaming and extremely angry. The male used a lot of profanity but later calmed down. PO Marvelli could not recall any specific details as to why the male was stopped. PO Marvelli stated that if force was used the male would have been arrested. PO Marvelli could not recall if he searched the male. PO Marvelli stated that throughout the time he has been an officer he has never told anyone to "shut the fuck up." He also never heard his partners make this remark. He did not recall threatening to arrest any onlookers.

Police Documents

§ 87(2)(a) 160.50, [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB History

This is the first complaint filed by § 87(2)(b) (encl. 2). § 87(2)(b)

PO Fontana has been employed by the NYPD for three years and has no previously substantiated CCRB allegations (encl. 1).

§ 87(2)(g)

Conclusions and Recommendations

Officer Identification

PO Marvelli was identified by the summons provided by § 87(2)(b). PO Marvelli does not dispute his presence at the scene. During PO Marvelli's CCRB interview, he identified PO Langlois and PO Fontana as his partners. They also did not dispute their presence on the scene. § 87(2)(g)

Undisputed and Disputed Facts

It is **undisputed** that § 87(2)(b) was on his bicycle when PO Marvelli, PO Langlois and PO Fontana stopped him. The three officers approached him and § 87(2)(b) admittedly disputed the stop. Individuals from across the street also used profanity towards the officers during the stop. PO Marvelli issued § 87(2)(b) a summons for § 87(2)(b) and the officers left the scene. Later that day, the officers saw § 87(2)(b) who claimed to have lost his summons. § 87(2)(g)

Credibility Analysis

§ 87(2)(g)

§ 87(2)(g)

Allegation A: Discourtesy: An officer acted rudely toward § 87(2)(b)

Allegation B: Discourtesy: An officer spoke obscenely and/or rudely to § 87(2)(b)

Allegation D: Discourtesy: An officer spoke obscenely and/or rudely to individuals.

Allegation E: Abuse of Authority: An officer threatened to arrest individuals.

§ 87(2)(b) alleged that after an officer removed his wallet and prayer book from his back pocket, these items were thrown to the ground. He also alleged that an officer told him and the individuals across the street to “shut the fuck up.” This officer also threatened to arrest the individuals across the street. ■

§ 87(2)(g) None of the officers interviewed testified that § 87(2)(b)'s identification was thrown to the ground or that profanity was used against him or the other civilians. They also did not confirm that anyone was threatened with arrest.

§ 87(2)(g) it is recommended that allegations (A), (B), (D) and (E) be

§ 87(2)(g) closed as *unfounded*.

Allegation C: Force: PO Vincent Fontana used physical force against § 87(2)(b)

§ 87(2)(b) alleged that while the summons was being issued an officer kned him in the side and on the ribs. Based on § 87(2)(b)'s sworn testimony to the CCRB on October 5, 2005, he alleged that two officers used physical force against him, which varied from his initial statement on September 28, 2005, during which time he stated that he was kned once by PO Marvelli. On December 12, 2005, § 87(2)(b) revised his testimony again and alleged that it was solely PO Fontana who kned him on the side and back.

§ 87(2)(g) it is recommended that allegation (C) be § 87(2)(g) closed as *unfounded*.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: